

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

BOBBY RUIZ,

Plaintiff,

-against-

POLICE OFFICER MOSHAN SHAHBAZ, Shield No.
14852, POLICE OFFICER RAPHAEL SYLVESTRE,
Shield No. 1629, SERGEANT WISS EMILE, Shield No.
447, and JOHN AND JANE DOE 1-10,

Defendants.

----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of IncidentPlaintiff designates KINGS
County as the place of trial.**To the above named Defendants:**

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
March 10, 2019

Yours, etc.

CAITLIN ROBIN &
ASSOCIATES PLLC.
CAITLIN ROBIN, ESQ.
Attorney for Plaintiff
30 Broad Street, Suite 702
New York, New York 10004
(646)-524-6026TO: POLICE OFFICER MOSHAN SHAHBAZ
Shield No. 14852, Transit District 33
2399 Fulton Street
Brooklyn, NY 11233

POLICE OFFICER RAPHAEL SYLVESTRE
Shield No. 1629, Transit District 33
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SERGEANT WISS EMILE
Shield No. 447, Transit District 33
2399 Fulton Street
Brooklyn, NY 11233

JOHN AND JANE DOE 1-10

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

BOBBY RUIZ,

Plaintiff,

-against-

POLICE OFFICER MOSHAN SHAHBAZ, Shield No.
14852, POLICE OFFICER RAPHAEL SYLVESTRE,
Shield No. 1629, SERGEANT WISS EMILE, Shield No.
477, and JOHN AND JANE DOE 1-10,

Defendants.

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, BOBBY RUIZ, by his attorneys, Caitlin Robin & Associates, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the Fourth and Fourteenth Amendments to the United States Constitution. On June 29, 2018, at approximately 9:00 p.m., plaintiff Bobby Ruiz was subjected to an unlawful stop, frisk, search, detention, and false imprisonment, while lawfully present inside an MTA subway station located at Broadway Junction in Brooklyn, County of Kings, New York. Thereafter, the defendant police officers denied plaintiff the right to a fair trial by forwarding false information to the District Attorney's Office. Plaintiff was deprived of his constitutional rights when the individual defendants unlawfully stopped, questioned, frisked, searched, unlawfully arrested, and denied the Plaintiff the right to a fair trial in violation of the Fourth and Fourteenth Amendments to the United States Constitution and in violation of New York State Law.

PARTIES

2. Plaintiff BOBBY RUIZ is a resident of the State of New York.

3. POLICE OFFICER MOSHAN SHAHBAZ, Shield No. 14852, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. On the date of the subject incident, POLICE OFFICER MOSHAN SHAHBAZ, Shield No. 14852, was assigned to Transit District 33.

5. POLICE OFFICER MOSHAN SHAHBAZ, Shield No. 14852, is being sued in his individual and official capacities.

6. POLICE OFFICER RAPHAEL SYLVESTRE, Shield No. 1629, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. On the date of the subject incident, POLICE OFFICER RAPHAEL SYLVESTRE, Shield No. 1629, was assigned to Transit District 33.

8. POLICE OFFICER RAPHAEL SYLVESTRE, Shield No. 1629 is being sued in his individual and official capacities.

9. SERGEANT WISS EMILE, Shield No. 447, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. On the date of the subject incident, SERGEANT WISS EMILE, Shield No. 447, was assigned to Transit District 33.

11. SERGEANT WISS EMILE, Shield No. 447, is being sued in his individual and official capacities.

12. POLICE OFFICER JOHN AND JANE DOE 1-10, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. On the date of the subject incident, POLICE OFFICER JOHN AND JANE DOE 1-10, was assigned to Transit District 33.

14. POLICE OFFICER JOHN AND JANE DOE 1-10, is being sued in his individual and official capacities.

15. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

16. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

17. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The

defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

18. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

19. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

20. On June 29, 2018, at approximately 9:00 p.m., plaintiff was lawfully traveling on the J – Line Subway train at the Broadway Junction MTA station in Brooklyn, New York when the defendant police officers unlawfully approached plaintiff without reasonable suspicion or probable cause.

21. Plaintiff was travelling back from a fishing trip and had his fishing gear with him.

22. The Defendants asked Plaintiff to use a different staircase in the subway station.

23. Plaintiff complied with the Defendants request and walked to a different staircase.

24. Suddenly, without any provocation or legal justification, Defendant Police Officer Mohammad Shahbaz grabbed Plaintiff by the neck and threw him to the ground.

25. At no time prior to being stopped by the officers did plaintiff commit a crime or behave in a manner that gave the police officers a reasonable and objective basis to believe he had committed or was committing a crime.

26. Defendant police officers then searched Plaintiff without his consent.

27. No contraband or anything illegal was found on Plaintiff.

28. Defendant police officers then unlawfully handcuffed Plaintiff and placed him under arrest.

29. At no point in time did Plaintiff resist arrest in any way.

30. Defendants refused to tell Plaintiff what they were arresting him for.

31. The entire incident was recorded by MTA surveillance, which Plaintiff is in possession of. Defendants were wearing body cameras, however only turned the body cameras on after Plaintiff's arrest.

32. The Defendants then transported him to the TD-33 Police Station.

33. At the TD-33 precinct, Plaintiff was fingerprinted, photographed, and unlawfully detained in a holding cell.

34. Plaintiff was then transported to Kings County Central Booking.

35. The Defendants falsely stated to the Kings County District Attorney's Office that Plaintiff had committed a crime despite knowing that they lacked a legal and a factual basis to allege that plaintiff committed any crime.

36. On June 30, 2018, at approximately 8:00 p.m., after approximately 24 hours in police custody, plaintiff was arraigned in Kings County Criminal Court in front of Judge Norillo.

37. Plaintiff was unlawfully charged with Menacing of a Police Officer, and other related charges.

38. Based on the Defendants' false allegations, Judge Norillo set bail at \$2500, which Plaintiff was unable to immediately post.

39. Thereafter, Plaintiff was transported to Rikers Island.

40. On June 30th, 2018, there was a heat wave and Plaintiff was unlawfully kept in custody at Rikers in excruciating conditions.

41. On July 4, 2018, after approximately 6 days unlawfully in police custody, Plaintiff posted bail and was released.

42. Thereafter, plaintiff was forced to appear in Court on approximately 9 occasions before all charges against plaintiff were dismissed and sealed on or about February 28, 2019.

43. Plaintiff was fired from his job at Balloon One as a result of the false charges by the Police, even though those false charges were ultimately dismissed and sealed.

44. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, seizure, false arrest, denial of fair trial, against plaintiff.

45. The unlawful stop, question, frisk, search, false arrest, false imprisonment, unlawful seizure, and denial of fair trial, against plaintiff by the individually named defendants

caused plaintiff to sustain physical, psychological and emotional trauma, as well as loss of employment.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

46. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "45" with the same force and effect as if more fully set forth at length herein.

47. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, subjected to denial of his due process rights and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

48. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

49. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

50. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

51. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

52. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

53. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

56. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

57. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution

58. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

59. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

60. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

61. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. The illegal approach, pursuit, stop and search inside plaintiff's, pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

63. Defendants lacked probable cause to search plaintiff.

64. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

65. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

66. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

67. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Denial of Right to Fair Trial

68. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 67 with the same force and effect as if fully set forth herein.

69. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the King's County District Attorney's Office.

70. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the King's County District Attorney's Office.

71. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the King's County District Attorney's Office.

72. In withholding/creating false evidence against plaintiff Bobby Ruiz and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

73. As a result of the foregoing, plaintiff Bobby Ruiz, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of her constitutional rights.

74. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

75. The City, as the employer of Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Failure to Intervene

76. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 75 with the same force and effect as if more fully set forth at length herein.

77. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

78. Defendants failed to intervene to prevent the unlawful conduct described herein.

79. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of her safety, and he was humiliated and subject to other physical constraints.

80. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

81. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

JURY DEMAND

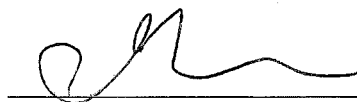
82. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Bobby Ruiz demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
March 10, 2019

By: _____



CAITLIN ROBIN &
ASSOCIATES PLLC.
CAITLIN ROBIN, ESQ.

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2399 Fulton Street
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JOHN AND JANE DOE 1-10

ATTORNEY'S VERIFICATION

CAITLIN ROBIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **CAITLIN ROBIN & ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
March 10, 2019



CAITLIN ROBIN, ESQ.

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
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Defendants.

SUMMONS & COMPLAINT

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